

Intest.Cas./7/2016 on 15 July, 2025

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GAHC010117572016

2025:GAU-AS:9113

IN THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM & ARUNACHAL PRADESH)

Intest. Cas.No. 7/2016

Smti Jonali Paul,
W/o-Late Himangshu Shekhar Paul,
R/o-Ward No. 14, Bilasipara Town,
P.S.& P.O. Bilasipara,
District- Dhubri, Assam.

.....Appellant

Versus-

1. Smti Mamoni Paul and 5 Ors.,
W/o-Late Himangshu Shekhar Paul,
R/o-Ward No. 14, Bilasipara Town,
P.S.& P.O. Bilasipara,
District- Dhubri, Assam.
2. Smti Anima Rani Paul,
W/o-Late Hari Charan Paul.
3. Smti Swatabdi Paul,
D/o-Late Himangshu Shekhar Paul.

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4. Smti Chayanika Paul,
D/o-Late Himangshu Shekhar Paul.
5. Smti Swastika Paul,
D/o-Late Himangshu Shekhar Paul.

6. Smti Archana Paul,
D/o-Late Hari Charan Paul.
All R/o-Ward No. 14, Bilasipara Town,
P.S.& P.O. Bilasipara,
District- Dhubri, Assam.

.....Respondents

For Appellant 1. Mr. B.D. Deka, Advocate.

For Respondent(s) 1. Mr. R.K. Jain, Advocate.

WITH Smti Jonali Paul, W/o-Late Himangshu Shekhar Paul, R/o-Ward No. 14, Bilasipara Town,
P.S.& P.O. Bilasipara, District- Dhubri, Assam.

..... Appellant Versus-

1. Smti Mamoni Paul and 5 Ors., W/o-Late Himangshu Shekhar Paul, R/o-Ward No. 14, Bilasipara Town, P.S.& P.O. Bilasipara, District- Dhubri, Assam.

2. Smti Anima Rani Paul, W/o-Late Hari Charan Paul.

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3. Smti Swatabdi Paul, D/o-Late Himangshu Shekhar Paul.

4. Smti Chayanika Paul, D/o-Late Himangshu Shekhar Paul.

5. Smti Swastika Paul, D/o-Late Himangshu Shekhar Paul.

6. Smti Archana Paul, D/o-Late Hari Charan Paul.

All R/o-Ward No. 14, Bilasipara Town, P.S.& P.O. Bilasipara, District- Dhubri, Assam.

.....Respondents

For Appellant : Mr. P. Deka, Advocate.
For Respondent(s) : Mr.R.K. Jain, Advocate.

Date of Judgment : 15.07.2025

BEFORE
HON'BLE MR. JUSTICE MRIDUL KUMAR KALITA
JUDGMENT & ORDER (CAV)

1. Heard Mr. P. Deka, the learned counsel for the appellant. Also heard Mr. R. K. Jain, the learned counsel for the respondents. By this common judgment, it is proposed to dispose of two appeals, namely Intest. Case No. 07 of 2016, as well as Intest. Case No.02 of With Page3 2017, as both appeals arise out of a common judgment dated 12.08.2014 passed by the learned District Judge, Dhubri, by which two succession cases, namely Misc(S/C) Case No. 10/2011, as well as Misc(S/C) Case No.21/2011, were disposed of.

2. The facts relevant for consideration of both the appeals (Intest. Case No. 07 of 2016, as well as Intest. Case No. 02/2017), in brief, are that the respondent No. 1 in both the appeals, namely, Smt. Mamoni Paul, had filed a Misc(S/C) Case, u/s 372 of the Indian Succession Act, 1925, which was registered as Misc(S/C) Case No.10/2011, praying for grant of Succession Certificate in respect of debts and securities of her deceased husband, late Himangshu Shekhar Paul.

3. It is the case of the respondent No. 1, namely, Smt. Mamoni Paul, that she was married to late Himangshu Shekhar Paul on 24.02.1999, as per Hindu custom and rituals. Out of their wedlock, two daughters, namely, Ms. Swatabdi Paul and Ms. Chayanika Paul were born. Late Himangshu Shekhar Paul was a Sub-Inspector of Police, working in the District of Barpeta, at the time of his death. He committed suicide on 01.01.2011. At the time of his death, late Himangshu Shekhar Paul left behind his mother, an unmarried sister, three daughters and two wives.

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4. After filing of the application seeking Succession Certificate by Smt. Mamoni Paul, the second wife of late Himangshu Shekhar Paul namely Smt. Jonali Paul also filed an application under Section 372 of the Indian Succession Act, 1925 in respect of the debts and securities of late Himangshu Shekhar Paul. It was claimed by Smt. Jonali Paul (present appellant) that she was married to late Himangshu Shekhar Paul, as per Hindu rituals, on 11.02.2005, and out of the said wedlock, one daughter, namely, Ms. Swastika Paul was also born.

5. Since both the Misc. Cases, i.e. Misc(S/C) Case No.10/2011 and Misc.(S/C) Case No.21/2011 were in respect of the debts and securities of late Himangshu Shekhar Paul, the learned District Judge, Dhubri heard both the cases together and disposed of both the cases by the common judgment dated 12th August 2014, which has been impugned in both the abovementioned appeals. During hearing of both the Misc(S/C) cases, the petitioner of Misc(S/C) Case No.10/2011, namely Smt. Mamoni Paul, adduced her evidence as PW-1. She has also adduced the evidence of 3(three) more witnesses, namely, Smt. Anima Rani Paul, Smt. Archana Paul and Sri Jayant Kumar Dey.

6. On the other hand, the petitioner of Misc(S/C) Case No. 21/2011, namely Smt. Jonali Paul, who is the appellant of both the above-mentioned appeals herein, had adduced her own evidence as With Page5 PW-1. She also adduced evidence of 4(four) more witnesses, namely Sri Surjya Kanta Roy, Sri Swapan Roy, Sri Prafulla Pathak and Sri Nirmal Roy. The Court of the learned District Judge,Dhubri, after considering the pleadings of the parties, framed the following points for

determination in the above-mentioned Misc. (S/C) cases-

i. Whether Smt. Anima Rani Paul or Smt. Jonali Paul is entitled to get the succession certificate as prayed for?

ii. Whether the daughters of aforesaid persons, including mother and unmarried sister, are entitled to succeed the shares of debts and securities of the deceased?

7. It is pertinent to mention herein that in her application for grant of Succession Certificate in respect of debts and securities of her deceased husband, late Himangshu Shekhar Paul, the petitioner of Misc(S/C) Case No.10/2011, namely Smt. Mamoni Paul, pleaded that her marriage was solemnized with the deceased on 24.02.1999 as per Hindu customs and rituals. She, however, has also stated in her petition that the deceased left behind her mother Smt. Anima Rani Paul, the petitioner herself, his daughter Ms. Swatabdi Paul, another daughter Ms. Chayanika Paul, unmarried sister Smt. Archana Paul, and another wife Smt. Jonali Paul.

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8. Ultimately, by the judgment which has been impugned in these appeals, the Court of the learned District Judge Dhubri, granted Succession Certificate in Misc(S/C) Case No.10/2011, to Smt. Mamoni Paul with certain conditions and the prayer for grant of Succession Certificate to the appellant Smt. Jonali Paul, in Misc(S/C) Case No. 21/2011, was rejected. While granting Succession Certificate to Smt. Mamoni Paul, the Court of the learned District Judge, Dhubri also directed that she has to give the respective shares to the other heirs of the deceased, namely Smt. Anima Rani Paul (mother of the deceased), Archana Paul (sister of the deceased), Swatabdi Paul and Chayanika Paul (daughters of the deceased from first marriage) and Swastika Paul (daughter of the deceased from the second marriage).

9. The learned counsel for the appellant has submitted that the Court of learned District Judge, Dhubri had erred in granting the Succession Certificate to Smt. Mamoni Paul and rejecting the prayer for grant of Succession Certificate to Smt. Jonali Paul. It is submitted by the learned counsel for the appellant that in her application for grant of Succession Certificate, the respondent No. 1(Smt. Mamoni Paul) had mentioned the name of the present appellant as one of the legal heirs of the deceased late Himangshu Shekhar Paul, therefore, she is estopped from denying the fact that the appellant is a legal heir of late Himangshu Shekhar Paul.

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10. The learned counsel for the appellant has submitted that the marriage of the appellant with late Himangshu Shekhar Paul has been duly proved by Exhibit-6 and Exhibit-B, whereas, the respondent No. 1 has failed to prove her marriage with the deceased, hence, it is submitted that the Court of learned District Judge, Dhubri had erred in rejecting the prayer for grant of Succession Certificate to the appellant. The learned counsel for the appellant has also submitted that the Court of the learned District Judge, Dhubri had exceeded in its jurisdiction by entering into the question of

the validity of marriage of the appellant with the deceased late Himangshu Shekhar Paul.

11. The learned counsel for the appellant has submitted that the Note-1 to Rule 143 of the Assam Services (Pension) Rules, 1969 provides that where there are more widows, pension will be payable to the eldest surviving widow. On her death, it will be payable to the next surviving widow, if any. The term "eldest" would mean the term with reference to the date of marriage. Hence, he submits that the appellant cannot be deprived of the family pension when the Pension Rules entitles her to the same.

12. On the other hand, the learned counsel for the respondents has submitted that the Court of the learned District Judge, Dhubri was right in granting the Succession Certificate to Smt. Mamoni Paul and rejecting the prayer of grant of Succession Certificate to Smt. With Page8 Jonali Paul as it rightly observed that as the marriage of the respondent No. 1 with deceased Himangshu Shekhar Paul was prior in time and therefore, the marriage of the appellant with deceased Himangshu Shekhar Paul cannot be regarded as a valid marriage.

13. The learned counsel for the respondents has submitted that the evidence adduced by the respondent No. 1 in both the Misc. (S/C) Cases before the learned District Judge, Dhubri shows that her marriage was performed with Late Himangshu Shekhar Paul on 24.02.1999 as per Hindu customs and rituals. He submits that even the evidence of mother of the deceased Himangshu Shekhar Paul shows that the Smt. Mamoni Paul was legally married to her son on 24.02.1999, therefore, the marriage of the appellant on 11.02.2005 is not a valid marriage as rightly held by the Trial Court. In support of his submissions, the learned counsel for the respondents has cited following rulings: -

i. "Dolly Rani-Vs-Manish Kumar Chanchal" reported in "[2024] 5 S.C.R.510;"

ii. "Khiteswar Phukan-Vs-Sowala Gogoi @ Phukan"

reported in "AIR 1991 Gauhati 61;"

iii. "Priya Bala Ghosh -Vs- Suresh Chandra Ghosh"

reported in "1971 (1) SCC864."

14. I have considered the submissions made by learned counsel for both sides and have gone through the records which were With Page9 requisitioned in connection with this case. I have also gone through the rulings cited by the learned counsel for both sides.

15. On perusal of the evidence adduced by both sides before the learned District Judge, Dhubri, it appears that the marriage of the respondent No.1, Smt. Mamoni Paul with late Himangshu Shekhar Paul was held on 24.02.1999 as per Hindu customs and rituals and the evidence to that effect could not be contradicted by the other side during the cross-examination of the witnesses.

16. Though, the appellant has also been able to prove that she was married to late Himangshu Shekhar Paul on 11.02.2005 as per Hindu Rites and Customs, however, it appears that at the time of her marriage with late Himangshu Shekhar Paul, the marriage of respondent No.1 Smt. Mamoni Paul with late Himangshu Shekhar Paul was still subsisting. The Section 5 of the Hindu Marriage Act, 1955 lays down the essential conditions for a valid Hindu marriage. Section 5(i) provides that the marriage may be solemnized between two Hindus, if neither party has a spouse living at the time of the marriage. It appears that this condition was violated in case of marriage of the appellant with late Himangshu Shekhar Paul, therefore, as per Section 11 of the Hindu Marriage Act, 1955 her marriage with late Himangshu Shekhar Paul was a void marriage.

17. As regards the provision contained in the Note-1 to Rule 143 of the Assam Services (Pension) Rules, 1969 is concerned, there is With Page10 no dispute regarding the fact that the appellant and late Himangshu Shekhar Paul were Hindus and were governed by the provisions of Hindu Marriage Act, 1955. The Pension Rules cannot override the statutory provisions contained in the Hindu Marriage Act, 1955. The marriage of the appellant with late Himangshu Shekhar Paul is a void marriage under Section 11 of the Hindu Marriage Act, 1955.

18. It is true that in the abovementioned Misc.(S/C)Cases which were considered by the Court of the learned District Judge, Dhubri, the validity of marriage of the appellant with late Himangshu Shekhar Paul was not the main question under consideration, however, to ascertain the claim of the appellant for grant of Succession Certificate, the Court of the learned District Judge, Dhubri has to ascertain the right on the basis of which she was claiming Succession Certificate under Section 372 (1)(d) of the Indian Succession Act 1925. Unless the petitioner establishes her right in which she was claiming Succession Certificate in respect of debts and securities of late Himangshu Shekhar Paul, she is not entitled to get the succession certificate.

19. This Court is of considered opinion that though, the appellant claimed to be the wife of late Himangshu Shekhar Paul, however, prima facie, it appears that the marriage of the appellant Smt. Jonali Paul with late Himangshu Shekhar Paul, on 11.02.2005, was With Page11 performed during the subsistence of the earlier marriage of the late Himangshu Shekhar Paul with the respondent No. 1 Smt. Mamoni Paul. Hence, the marriage of the appellant with late Himangshu Shekhar Paul is apparently a void marriage under Section 11 of the Hindu Marriage Act, 1958. Said marriage is void ab initio, hence, this Court is of the considered opinion that the Court of the learned District Judge, Dhubri has correctly rejected the prayer for grant of Succession Certificate to Smt. Jonali Paul and has correctly granted the same in favour of Smt. Mamoni Paul.

20. As regards grant of share to the daughter of the appellant, namely Ms. Swastika Paul is concerned, this Court is of considered opinion that the Court of learned District Judge, Dhubri was right in directing the grant of share to the daughter of the appellant. In view of the provisions contained in Section 16 of the Hindu Marriage Act, 1958, the daughter of the appellant shall be regarded as a legitimate daughter of late Himangshu Shekhar Paul, therefore, she is entitled to get a share in the debts and securities of her deceased father being a Class-I heir of the deceased.

21. This Court, therefore, does not find any error in the impugned judgment of the learned District Judge, Dhubri, whereby, it granted the Succession Certificate to respondent No.1 Smt. Mamoni Paul and rejected the prayer for grant of Succession Certificate to the With Page12 appellant Smt. Jonali Paul. The impugned judgment dated 12.08.2014 passed by the learned District Judge, Dhubri, by which two succession cases, namely Misc(S/C) Case No. 21/2011, as well as Misc(S/C) Case No.10/2011, were disposed of, is hereby upheld.

22. The impugned judgment, therefore, needs no interference by this Court in exercise of its appellate powers.

23. Both these appeals are accordingly dismissed.

24. Send back the records which have been requisitioned from the Trial Court, along with a copy of this judgment.

JUDGE Comparing Assistant With Page13